



File No.: EXP202309272

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by ASOCIACIÓN INSERTA EMPLEO (hereinafter, the appellant or Inserta) against the resolution issued by the Director of the Spanish Agency for Data Protection dated May 8, 2024, and based on the following:

FACTS

FIRST: On May 8, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202309272, by virtue of which a warning was directed to INSERTA for the infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR, and it was ordered to the same, pursuant to Article 58.2.d) of the GDPR, within six months from the date this resolution becomes final and enforceable, to prove compliance with the measures that respect the principle of minimization established in Article 5.1.c) of the GDPR. This resolution, which was notified to the appellant on May 9, 2024, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PA/00047/2023, the following was recorded:

FIRST: The file contains an email sent on May 11, 2023, by the complainant to the respondent, informing Inserta that they must leave the ***PROGRAM.1 they were participating in, as they are starting to work in local administration, and attaching a series of documents, including a copy of their work history, a certificate of the employment contract issued by SEPE, and emails exchanged with the respondent.

SECOND: The file includes an email sent by the respondent to the complainant dated May 12, 2023, in which it is stated that to justify the complainant's resignation due to placement, they will need the employment contract, as with the communication of the contract, they cannot justify their placement.

THIRD: The file shows that on February 20, 2024, A.A.A. (***POSITION.1) sent an email to B.B.B. and C.C.C. requesting that a model email be sent to the workers of Program ***PROGRAM.1 so that they do not request more necessary data, with the following content:

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2/18

“(…)

Let us always remember:

- Collect only the necessary and relevant information for the specific purpose.

For example: At the moment a candidate's CV is collected, information regarding union affiliation or religious beliefs should not be requested.

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Limit access to personal data only to those individuals who require it to fulfill their functions.

For example: Only the recruitment and selection team should have access to the complete information of the candidates, and such access should be limited to the details necessary to carry out selection processes.

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Ensure the secure deletion or blocking of data when it is no longer necessary for the purpose for which it was collected.

For example: If a candidate is ultimately not selected and their profile is not of interest to the entity, all

data that was being processed in the context of the selection process should be deleted. Finally, it should be noted that access to personal data must be handled with the utmost confidentiality possible, and any additional inquiry or disclosure of this information should be made only with the appropriate authorization (...)."

In summary, the program manager requested a copy of the employment contract signed by the complainant with ***ORGANISM.1, although the latter considers that the request for said contract is excessive, as it contains salary data and other concepts that they do not consider necessary. They had already sent a copy of their work history, a certificate of the employment contract downloaded from the SEPE website, and communication of the contract with SEPE with contrat@2; nevertheless, they continued to be required to provide a copy of the contract to process their resignation.

THIRD: The appellant submitted a recourse for reconsideration on June 10, 2024, to this Spanish Agency for Data Protection, within which the following allegations were indicated:

First.- Infringement of the principle of legality: The appellant claims that the actions carried out by INSERTA are not specifically and clearly classified as sanctionable under data protection regulations. According to the principle of legality, only sanctions that are clearly defined by a norm with the rank of law can be imposed. In this regard, it states that INSERTA's actions did not constitute a breach of the principle of data minimization, as they did not process unnecessary or excessive data, and therefore, such actions cannot be subject to sanction. It argues that INSERTA's conduct lacks the

3/18
predetermined regulatory requirement, and sanctioning it would contravene the principle of legality. It asserts that the Constitutional Court has established in multiple resolutions the intimate relationship between the principles of sanctioning legality and legal certainty, emphasizing the need for a clear correlation between unlawful administrative acts and their corresponding sanctions (Judgment 113/2002, of May 9). It indicates that INSERTA requested the employment contract from the claimant, who sent the pseudonymized document, without processing additional or unnecessary data, thus the principle of minimization was not violated, and the imposed sanction contravenes the principle of legality.

Second.- Absence of culpability in the actions of INSERTA: The appellant states that, according to the proven facts, there is no evidence of any intention on the part of INSERTA to breach a legal obligation, which prevents the imposition of a sanction. The National Court has highlighted that the absence of voluntariness, the lack of a particularly harmful result, and the diligence in the actions of INSERTA make imposing a sanction contrary to the principles of minimal intervention and proportionality in the administrative sanctioning field.

To support this, it cites the Judgment of the National Court of December 14, 2006, which emphasizes that culpability is an indispensable element for the imposition of sanctions, according to Article 130.1 of Law 30/1992. The sanctioning administrative law requires intent or fault, as confirmed by multiple judgments of the Constitutional Court and the Supreme Court. In this case, the appellant indicates that INSERTA acted without intent or fault, having requested the employment contract solely to verify its authenticity and not having requested additional data from the claimant.

Third.- Inutilization of alternative conflict resolution mechanisms in good faith: The appellant asserts that the imposition of a warning is excessive given that the claimant did not utilize alternative conflict resolution mechanisms before filing the complaint. INSERTA has always been open to dialogue and has an internal protocol for managing requests for the exercise of rights regarding data protection. However, it points out that the claimant did not contact INSERTA nor exercised their rights according to Article 15 and subsequent articles of the GDPR, instead opting to file a complaint directly with the AEPD, which is considered a disproportionate action.

Fourth.- Absence of damages: The appellant indicates that no damage or harm has occurred to the claimant, as the information sent was pseudonymized and INSERTA did not access more personal data than what was already known beforehand. It asserts that INSERTA has followed all established security procedures for handling personal data, thereby ensuring the privacy of the claimant. In the

absence of a violation of the applicable regulations and without evidence of tangible harm, the imposition of sanctions against the company is not justified.

Fifth.- Suspension of the enforceability of the resolution subject to this appeal: Finally, the appellant states that the immediate execution of the resolution would cause irreparable harm to the interests of INSERTA, considering its organizational structure and the large number of employees. INSERTA has planned to provide training in data protection, but a rushed implementation would compromise its effectiveness and could damage the entity's reputation. The requested suspension is a temporary measure that does not negatively affect third parties or the public interest, and guarantees a more effective and appropriate execution of the required measures.

Additionally, it requests that the publication of the resolution be avoided for two fundamental reasons:

a. First, because linking the facts that will inevitably be detailed in the resolution with INSERTA makes it quite easy to identify the affected individual, as it provides information about their new workplace (**ORGANISM.1) ***PROGRAM.1, thus suggesting that this is a person with a disability.

b. Furthermore, the publication of the resolution would severely harm the reputation of INSERTA, an entity with a strong commitment to data protection, considering that this is an isolated case and that it has taken effective corrective measures to prevent future violations. This reputational damage could have a negative impact on the social action carried out by INSERTA, labor intermediation, and the development of talent with disabilities.

In this sense, a warning resolution against INSERTA would reduce the trust of collaborating companies or those intending to hire its services, thus impacting the ultimate goal, the labor insertion of people with disabilities.

In this way, not only would the image and reputation of INSERTA as an entity be severely affected, but it could also imply harm to the common good that this entity pursues.

If the AEPD is obliged to publish the resolution of the sanction, any express reference to the entity INSERTA and to those identified individuals in this document should be omitted, for the same reasons stated in the previous point II.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of the LOPDGDD.

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5/18

II

Response to the allegations presented

A response is provided to the same in the order presented by INSERTA.

First.- Violation of the principle of legality

In the case now examined, the AEPD, in relation to a series of specific facts that it considers proven, categorizes them within the infringing type that it deems appropriate, in accordance with the application and interpretation of the regulations, providing a detailed and sufficient justification for such action. The AEPD is bound by the principle of legality, which implies the application and interpretation of the rules taking into account the specific factual situation that occurs in each case.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.” This means that in a specific processing operation, only the relevant personal data that is pertinent to the case and strictly necessary to fulfill the purpose for which they are processed may be processed.

The processing must be adjusted and proportional to the purpose it is directed towards. The relevance

in the processing of data must occur both at the time of data collection and in the subsequent processing that is carried out. In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

This article makes it clear that personal data shall be “adequate, relevant and limited to the necessity” for which they were collected, so that if the intended objective can be achieved without excessive data processing, that is how it should be done.

Furthermore, Recital 39 of the GDPR indicates that: “Personal data should only be processed if the purpose of the processing cannot reasonably be fulfilled by other means.” Therefore, only data that is “adequate, relevant and not excessive in relation to the purpose for which it is obtained or processed” shall be processed. The categories of data selected for processing must be strictly necessary to achieve the declared objective, and the data controller must strictly limit the collection of data to that information which is directly related to the specific purpose that is intended to be achieved.

The program, ***PROGRAM.1, in which the claimant participates, is directed, among other requirements, to job seekers. When one of its participants secures a job, they must communicate and prove this circumstance to the Asociación Inserta Empleo, the entity through which the aforementioned program is carried out.

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6/18

In the present case, the claiming party, upon being hired by ***ORGANISMO.1, requested the responding party to process their withdrawal from the ***PROGRAMA.1 program. To this end, they sent the responding party a copy of their work history, a certificate of the employment contract downloaded from the SEPE website, and communication of the contract to the SEPE with contrat@2. Despite the above, the responding party has requested the claiming party to provide a copy of the employment contract to process such withdrawal.

The employment contracts contain personal data (economic data) that are not necessary for the data controller to fulfill the purpose of verifying the new employment of the program participant for the purpose of processing their withdrawal.

And since the claiming party had already sent documents evidencing their new employment situation, it is considered that the responding party has violated Article 5.1 c) of the GDPR by requiring a copy of the employment contract, which contains excessive data to fulfill the purpose of verifying the employment placement and, therefore, processing their withdrawal from the ***PROGRAMA.1 program.

Furthermore, it should be noted that under the broad concept of personal data processing defined by the jurisprudence of the CJEU, the mere request for personal data to be incorporated into a processing operation would in itself be a processing operation, and therefore subject to the GDPR. Therefore, it should not be understood, as stated by INSERTA, that there has been no violation of the principle of minimization, given that an infringement has occurred by requesting excessive data.

As established by the jurisprudence of the CJEU, the definition of personal data processing in Article 4.2 of the GDPR includes a non-exhaustive enumeration of operations, understanding the expression “any operation” in a very broad sense as included in the definition of processing, resulting in the fact that exceptions to its scope of application must be interpreted strictly. We will cite, among others, the CJEU Judgment of February 24, 2022, C175/20, the CJEU Judgment of May 4, 2023, C.487/21, the CJEU Judgment of March 30, 2023, C.34/21, and the CJEU Judgment No. 659/2022 of October 5, 2023.

The principle of sanctioning legality and the principle of legal certainty, on which the appealing party relies, do not require that each sanctionable action be exhaustively described in the provision. On the contrary, it requires that the sanctionable behavior be clearly foreseen and typified, which is the case here. The conduct of the appealing party falls within the provisions of Article 5.1.c) of the GDPR.

The Judgment 113/2002 of the Constitutional Court invoked also states that the principles of legality

and legal certainty do not require a detailed and specific description of each concrete act in the regulations, but rather a predetermination of the sanctionable conduct and its penalties. The GDPR and the LOPDGDD comply with this standard by establishing the principle of minimization and explicitly sanctioning the breach of this principle. Therefore, the imposed sanction does not violate the principle of legality, as the applicable regulations adequately delimit the conduct and the consequences of its breach.

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7/18

Second.- Absence of culpability in the actions of INSERTA.

The respondent states that there was never any intention on the part of INSERTA to commit a breach of a legal obligation, which determines the impossibility of imposing a sanction for such acts.

On the other hand, and strictly regarding the negligence in the actions of INSERTA, it should be noted that the SAN -Contentious-Administrative Chamber- 392/2015, of November 17, in its Legal Foundation Third, incorporates the doctrine of the Constitutional Court regarding the application of the principles of criminal law to administrative sanctioning law, in the following terms:

The Constitutional Court has repeatedly declared that the principles of criminal law, among which is the principle of culpability, are applicable, with certain nuances, to administrative sanctioning law, as both are manifestations of the punitive order of the State (STC 18/1987, 150/1991), and that objective or non-fault liability is not admissible in the administrative sanctioning sphere, whereby the possibility of imposing sanctions solely based on the result is excluded, without proving a minimum level of culpability even in terms of mere negligence (SSTC 76/1990 and 164/2005).

The principle of culpability, guaranteed by Article 25 of the Constitution, limits the exercise of the State's "ius puniendi" and requires, as stated by the Constitutional Court in judgment 129/2003, of June 20, that the imposition of the sanction be based on the requirement of the subjective element of fault, to guarantee the principle of responsibility and the right to a sanctioning procedure with all guarantees (STS of March 1, 2012, Rec 1298/2009).

Certainly, the principle of culpability, provided for in Article 130.1 of Law 30/1992, of November 26, on the Legal Regime of Public Administrations and the Common Administrative Procedure, states that only those responsible for acts constituting an administrative infraction can be sanctioned, even in terms of simple non-compliance. Obviously, this implies that such responsibility can only be demanded in terms of intent or fault, excluding from the scope of administrative sanctioning law the so-called "objective liability," and understanding the culpable title to include recklessness, negligence, or inexcusable ignorance.

This "simple non-compliance" cannot, therefore, be understood as the admission in administrative sanctioning law of objective liability, as the majority jurisprudence of our Supreme Court (starting from its judgments of January 24 and 25 and May 9, 1983) and the doctrine of the Constitutional Court (after its STC 76/1990) highlight that the principle of culpability, even without explicit recognition in the Constitution, is inferred from the principles of legality and prohibition of excess (Article 25.1 CE), or from the inherent requirements of a Rule of Law, thus requiring the existence of intent or fault (in this sense STS of January 21, 2011, Rec 598/2008).

However, the way of attributing responsibility to legal entities does not correspond to the forms of culpability that are imputable as intentional or negligent.

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8/18

to human conduct. Thus, in the case of infringements committed by legal entities, although the element of culpability must be present, it necessarily applies differently than it does with natural persons. According to STC 246/1991, "(...) this distinct construction of the imputability of the authorship of the

infringement to the legal person arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe the norms to which they are subject. The capacity for infringement and, therefore, direct reproachability derives from the legal good protected by the norm that is infringed and the necessity for that protection to be truly effective, as well as the risk that, consequently, the legal person must assume, which is subject to compliance with that norm" (in this sense, STS of November 24, 2011, Rec 258/2009).

To the above, it should be added, following the ruling of January 23, 1998, partially transcribed in the SSTS of October 9, 2009, Rec 5285/2005, and October 23, 2010, Rec 1067/2006, that "although the culpability of the conduct must also be subject to proof, it should be considered in relation to the assumption of the corresponding burden, that ordinarily the volitional and cognitive elements necessary to appreciate it form part of the proven typical conduct, and that their exclusion requires evidence of the absence of such elements, or in its normative aspect, that due diligence has been exercised by the one who claims its non-existence; it is not enough, in summary, for exculpation against typically unlawful behavior to invoke the absence of fault."

In the case at hand, the existence of unlawfulness and culpability in the infringing conduct of the entity responsible for the processing of personal data, INSERTA, is evident, as it, as the data controller, decides on the purpose, content, and use of the personal data included in the processing, has the obligation to act with greater diligence when requesting only the necessary data. This condition imposes a special duty of diligence when it comes to requesting personal data, regarding compliance with the duties established by data protection legislation to guarantee the fundamental rights and public freedoms of natural persons, and especially their honor and personal and family privacy, the intensity of which is heightened by the relevance of the legal goods protected by those norms and the professionalism of the controllers or processors, especially when they operate for profit in the data market; in this sense, SAN 392/2015, of November 17, has also pronounced (See its Legal Basis Three).

Regarding the conduct of INSERTA, it is considered to fall under the title of fault.

It is Recital 74 of the GDPR that states: The responsibility of the data controller must be established for any processing of personal data carried out by themselves or on their behalf. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing, as well as the risk to the rights and freedoms of natural persons. Likewise, Recital 79 states: The protection of the rights and freedoms of data subjects, as well as the responsibility of the...

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9/18

Responsible parties and data processors, also regarding the supervision by control authorities and the measures adopted by them, require a clear attribution of responsibilities under this Regulation, including cases where a controller determines the purposes and means of processing jointly with other controllers, or where the processing is carried out on behalf of a controller.

Objective responsibility is prohibited in our legal system. In the field of sanctioning Administrative Law, the principle of culpability applies, such that the subjective or culpability element is an indispensable condition for the emergence of sanctioning responsibility. Article 28 of Law 40/2015, on the Legal Regime of the Public Sector (LRJSP) regulates the principle of culpability and states:

"1. Only individuals and legal entities, as well as, when a Law recognizes their capacity to act, groups of affected individuals, unions, and entities without legal personality and independent or autonomous estates, may be sanctioned for acts constituting an administrative infraction, provided they are responsible for the same by way of intent or negligence."

In accordance with this provision, sanctioning responsibility may be demanded on the basis of intent or negligence, with mere non-compliance with the duty of care being sufficient in the latter case.

The Constitutional Court, among others, in its ruling STC 76/1999, has declared that administrative sanctions share the same nature as criminal ones, being one of the manifestations of the State's *ius puniendi*, and that, as a requirement derived from the principles of legal certainty and legality enshrined in Articles 9.3 and 25.1 of the Constitution, their existence is essential for imposing them. Regarding the culpability of legal entities, it is worth citing STC 246/1991, December 19, 1991 (F.J. 2), which states that, concerning legal entities, the subjective element of culpability must necessarily be applied differently than it is for individuals and adds that "This different construction of the attribution of authorship of the infraction to the legal entity arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe the norms to which they are subject. The capacity for infringement and, therefore, direct reproachability that derives from the legal good protected by the norm that is infringed and the necessity for that protection to be truly effective [...]"

The decision to archive a sanctioning file may be based on the absence of the element of culpability when the responsible party for the unlawful conduct has acted with all the diligence required of them. It is worth recalling what STC 246/1991 has stated regarding the culpability of legal entities: that they do not lack the "capacity to infringe the norms to which they are subject." "Capacity for infringement [...]" that derives from the legal good protected by the norm that is infringed and the necessity for that protection to be truly effective [...]"

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10/18

In connection with the above, reference must be made to Article 5.2 of the GDPR (principle of proactive responsibility), according to which the data controller shall be responsible for compliance with the provisions of paragraph 1 and capable of demonstrating such compliance. The principle of proactivity transfers to the data controller the obligation not only to comply with data protection regulations but also to be able to demonstrate such compliance.

Opinion 3/2010, from the Article 29 Working Party (WP29) - WP 173 - issued during the validity of the repealed Directive 95/46/EC, but whose reflections are applicable today, states that the "essence" of proactive responsibility is the obligation of the data controller to apply measures that, under normal circumstances, ensure that the data protection rules are complied with in the context of processing operations and to have available documents that demonstrate to data subjects and supervisory authorities what measures have been adopted to achieve compliance with data protection regulations. And on this matter, one must not forget Article 24.1 of the GDPR, which regarding the responsibility of the data controller states: "Taking into account the nature, scope, context, and purposes of the processing as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is performed in accordance with this Regulation. Such measures shall be reviewed and updated when necessary."

It should be noted what diligence was observed by the respondent in relation to the conduct that should have been observed concerning the examined conduct. The answer is that the diligence that should have been observed was that which was necessary to fulfill the obligations imposed by Article 5.1(c) of the GDPR, which led to the initiation of the procedure.

Therefore, in accordance with the principle of proactivity, the respondent did not adopt a conscious and diligent attitude, avoiding incidents such as those that led to the complaint and the initiation of the procedure, a violation of Article 5.1(c) of the GDPR, an attitude and behavior that have not existed in the present case, evidencing a lack of diligence.

Third.- Inutilization of alternative dispute resolution mechanisms in good faith.

In accordance with the provisions of Article 77 of the GDPR. Right to lodge a complaint with a supervisory authority.

1. Without prejudice to any other administrative remedy or judicial action, any interested party shall have the right to lodge a complaint with a supervisory authority, in particular in the Member State in

which they have their habitual residence, place of work, or place of the alleged infringement, if they consider that the processing of personal data concerning them infringes this Regulation.

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11/18

2. The supervisory authority to which the complaint has been submitted will inform the complainant about the course and outcome of the complaint, including the possibility of accessing judicial protection under Article 78.

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating the reasons for them.

In accordance with this regulation, it is a right recognized by Article 77 of the GDPR for the complainant to submit a complaint to the supervisory authority.

This right is autonomous, and its exercise is not conditioned on the complainant necessarily exhausting internal mechanisms of the entity before approaching the AEPD. Therefore, the complainant is entitled to submit a complaint without being obliged to first resort to the internal resolution mechanisms of INSERTA.

Having an internal protocol to manage requests for rights regarding data protection does not exempt the responsibility to comply with all GDPR regulations, and in case of non-compliance, any affected party may submit a complaint to the present authority. In the contested resolution, the warning from the AEPD is precisely aimed at correcting a behavior that, despite the internal mechanisms, resulted in a violation of the GDPR and the subject of the complaint.

In accordance with this regulation, it is a right recognized by Article 77 of the GDPR for the complainant to submit a complaint to the supervisory authority.

Fourth.- Absence of damages.

Such a claim cannot be accepted; we must not forget that we are dealing with the fundamental right to the protection of personal data, which seeks to guarantee individuals control over their personal data, its use, and destination, with the aim of preventing its unlawful processing and harm to their dignity.

In the field of data protection, the sanction or corrective measure does not necessarily depend on the existence of tangible damage or harm to the complainant. The GDPR establishes compliance obligations, and violations can be sanctioned regardless of the damage caused. In the case at hand, the principle of data minimization provided for in Article 5.1(c) of the GDPR implies that only information strictly necessary for the established purpose should be collected and processed. The violation of this principle constitutes a sanctionable infringement, regardless of whether the complainant experienced tangible harm, as occurred in the present case.

C/ Jorge Juan, 6
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28001 – Madrid
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12/18

Fifth.- Suspension of the enforceability of the resolution subject to this appeal.

Finally, the appellant states that the immediate execution of the resolution would cause irreparable harm to the interests of INSERTA, considering its organizational structure and the large number of employees. INSERTA has planned to provide training in data protection, but a rushed implementation would compromise its effectiveness and could damage the entity's reputation. The requested suspension is a temporary measure that does not negatively affect third parties or the public interest, and ensures a more effective and appropriate execution of the required measures.

Furthermore, it requests that the publication of the resolution be avoided because it considers that from the account of facts, the affected individual can be easily identified, and due to the damage it would cause to the image and reputation of the entity. Therefore, the appellant invokes that if the

AEPD is obliged to publish the resolution of the sanction, any express reference to the entity INSERTA and to those identified individuals in this document should be omitted.

Regarding the suspension of the enforceability of the resolution, until the present optional appeal for reconsideration filed against it is resolved, in accordance with the provisions of Article 117 of the LPACAP, given that it states that the immediate execution of the resolution subject to appeal would cause irreparable harm to its interests, it is worth recalling that resolutions from sanctioning procedures are only enforceable when no administrative appeal can be made, including the optional appeal for reconsideration, as expressly indicated by Article 90.3 and Article 98.1(b) of the LPACAP.

Consequently, in this case, the resolution will only be enforceable when it is issued and notified, all without prejudice to what is established in the aforementioned Article 90.3.

In any case, the enforceability of a sanctioning resolution affects solely and exclusively that which constitutes the sanctioning resolute content, that is, the administrative sanction and, where applicable, the obligation to adopt measures to align the actions of the entity in question with the personal data protection regulations.

Regarding the publication of resolutions, Article 50 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights establishes that "The Spanish Agency for Data Protection will publish the resolutions of its Presidency that declare whether or not there is a basis for the attention of the rights recognized in Articles 15 to 22 of Regulation (EU) 2016/679, those that conclude complaint procedures, those that archive preliminary investigation proceedings, those that sanction with a warning the entities referred to in Article 77.1 of this organic law, those that impose precautionary measures, and others as provided by its Statute."

Article 11 of the Statute of the Spanish Agency for Data Protection, approved by Royal Decree 389/2021, of June 1, provides as follows:

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13/18

Article 11 of the Statute of the Spanish Agency for Data Protection, approved by Royal Decree 389/2021, of June 1, provides as follows:

"Article 11. Transparency and publicity.

1. The Spanish Agency for Data Protection shall publish on its website the resolutions of its Presidency that declare whether or not there is a basis for addressing the rights recognized in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, those that conclude the complaint procedures, those that archive the preliminary investigation actions, those that sanction with a warning the entities referred to in Article 77.1 of Organic Law 3/2018, of December 5, and those that impose precautionary measures.

2. Without prejudice to the provisions of Law 19/2013, of December 9, on transparency, access to public information, and good governance, any information that the Presidency considers relevant and that contributes to the better fulfillment of its functions shall also be published on the website."

Consequently, the obligation to publish the resolutions issued by this Agency is established in general terms, which is carried out on the AEPD website.

Well, INSERTA in the present appeal has identified the data it considers confidential and requests that any express reference to the entity INSERTA and to those identified natural persons in the resolution of the sanctioning procedure and in the resolution of the optional appeal for reinstatement be omitted. In this regard, without prejudice to the corresponding anonymization of the personal data of the natural persons appearing in the resolution, it is not possible to omit any reference to the claimed party therein, since, on the one hand, it is not considered a natural person and, on the other hand, in light of the public interest that the publication of such publications entails, which allows for knowledge of the criteria used by this authority, in addition to the objective of preserving its transparency in its actions. In matters of data protection, the publication of the administrative resolution does not constitute a sanction in itself.

The publication of certain resolutions of the AEPD is imposed by the provisions of the aforementioned

Article 50 of the LOPDGDD.

Unlike what happens in other regulatory areas where the publication of the sanctioning resolution is expressly provided as a sanction—by way of example, we cite Articles 304 and 308 of Royal Legislative Decree 4/2015, of October 23, which approves the consolidated text of the Securities Market Law—in matters of data protection, the norm that imposes the publication of certain resolutions does not characterize publicity as a sanction.

The purpose of publicity is not to publicly sanction the offender for their conduct, but to provide transparency and knowledge to citizens in general about the activity carried out by the AEPD.

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28001 – Madrid

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14/18

Furthermore, it is easy to verify the purpose of publishing the resolutions when considering that those published are not only those that may lead to sanctions, which are the ones that conclude sanctioning procedures, but also include resolutions from rights procedures, resolutions from warning procedures, or resolutions that archive preliminary investigation actions, in addition to those established by the Statute.

Thus, it is a guarantee for the administered in the terms of Article 45 of the LPACAP. Where the Law does not expressly configure publicity as a sanction, nor is it inferred from its legal nature, we cannot understand it either.

Therefore, the publication of the administrative resolution is due, as the Law imposes by stating literally that it “will publish.”

By publishing the resolution in the terms of Article 50 of the LOPDGDD, the general interest entrusted to the AEPD is fulfilled. However, it must always be duly anonymized and must exclude from the resolution any confidential matters or intellectual and industrial secrets.

On this matter, the ruling of the National Court dated January 13, 2022 states the following: “In this case, the sanctioning resolution being appealed is published, under the protection of Article 50 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights, which provides: ‘The Spanish Agency for the Protection of Data will publish the resolutions of its Presidency that declare whether or not there is a need to address the rights recognized in Articles 15 to 22 of Regulation (EU) 2016/679, those that conclude complaint procedures, those that archive preliminary investigation actions, those that sanction with a warning the entities referred to in Article 77.1 of this organic law, those that impose precautionary measures, and others that its Statute provides.’ That is to say, the aforementioned provision obliges the Spanish Agency for the Protection of Data (hereinafter AEPD) to make its resolutions public once they have been notified to the interested parties. Therefore, the suspension of the publication of the sanctioning resolution on the AEPD's website must be rejected, as there is a public interest in publicizing the resolutions of the AEPD on its website, with the aim of preserving the transparency of the AEPD's activities and, ultimately, the protection of the right to data protection through knowledge of the criteria for applying data protection regulations.

It is worth recalling, as noted by the ruling of the Supreme Court, Chamber 3, of March 31, 2015, that “the Public Administration acts under a regime of publicity of its acts in general and, specifically, to the extent that the regulatory norms of each sector of the legal system establish it (...).”

III

Unfulfilled Obligation

Article 5.1.c) of the GDPR establishes that personal data shall be:

“c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/18

The program, ***PROGRAM.1, in which the claimant participated, is aimed, among other requirements, at job seekers. When one of its participants secures a job, they must communicate and provide proof of this circumstance to the Asociación Inserta Empleo, the entity through which the aforementioned program is carried out.

In the present case, the claimant, upon being hired by ***ORGANISM.1, requested the defendant to remove them from the ***PROGRAM.1. To this end, they sent the defendant a copy of their work history, a certificate of the employment contract downloaded from the SEPE website, and communication of the contract in the SEPE with contrat@2.

Despite the above, the defendant has requested a copy of the employment contract from the claimant to process such removal.

The employment contracts contain personal data (economic data) that are not necessary for the data controller to fulfill the purpose of verifying the new employment of the program participant for the purpose of removing them from the program.

And since the claimant had already sent documents proving their new employment situation, it is considered that the defendant has violated Article 5.1 c) of the GDPR by requiring a copy of the employment contract, which contains excessive data to fulfill the purpose of verifying the job placement and, therefore, removing them from the program, ***PROGRAM.1.

IV

Classification and Qualification of the Violation

In accordance with the evidence available at this moment of the initiation agreement of the warning procedure, and without prejudice to what results from the instruction, it is considered that the defendant has committed a violation of the data minimization principle regulated in Article 5.1.c) of the GDPR.

The violation is classified under Article 83.5 of the GDPR, which states:

“5. Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

1. The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

For the purposes of the statute of limitations for violations, the alleged violation is subject to a three-year limitation period, in accordance with Article 72.a) of the LOPDGDD, which qualifies the following conduct as very serious:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

16/18

“a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.”

V

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)”

Likewise, Article 64 of the LOPDGDD, which regulates the “Initiation of the procedure and duration,”

states in its third paragraph that:

“3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall lapse, and consequently, the file of actions shall occur.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case.”

VI

Adoption of Measures

The controller is required to adopt appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time frame...”.

The AEPD is aware that the defendant is implementing a series of

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/18

measures: training on personal data protection and information security that will be mandatory for all Inserta employees, general communication to all employees in order to raise awareness and inform them of the importance of complying with personal data protection regulations in relation to the performance of their work functions, focusing on the principle of minimization and its implications for any processing of personal data (attaching said document), preparation of an infographic and development of a procedure for action.

However, the AEPD must again warn about the need to implement these measures, given that the responding party only refers to the measures it is going to take, which it is planning and working on. Therefore, the AEPD considers it necessary to require the responding party to provide this Agency with evidence of the adoption of measures that respect the principle of data minimization established in Article 5.1 c) of the GDPR within a period of six months.

It is warned that failure to comply with a possible order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.5, which could lead to the initiation of further administrative sanctioning procedures.

VII

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appealing party, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

VII

Conclusion

Therefore, since in the present appeal for reconsideration, no new facts or legal arguments have been presented that would allow for a reconsideration of the validity of the contested resolution, and given that the purpose of the appeal is to review the legality of the administrative action, it is appropriate to agree to its dismissal.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/18

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by ASOCIACIÓN INSERTA EMPLEO against the resolution of this Spanish Agency for Data Protection issued on May 8, 2024, in file EXP202309272.

SECOND: TO NOTIFY this resolution to ASOCIACIÓN INSERTA EMPLEO.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

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